

February 12, 2026

Robert F. Kennedy, Jr.
Secretary
United States Department of Health and Human Services
Hubert H. Humphrey Building
200 Independence Avenue, SW
Washington, DC 20201

RE: HHS Health Sector RFI [RIN 0955-AA13]

Dear Secretary Kennedy,

On behalf of URAC, thank you for the opportunity to provide comments on the Department of Health and Human Services' (HHS) Request for Information (RFI) entitled, "Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care." URAC applauds HHS' interest in studying and addressing the expanding use of artificial intelligence (AI) in clinical care and the corresponding impacts on patients, health care providers, and existing HHS regulatory structures. The use of AI in healthcare settings has the potential to advance patient care and reduce waste and inefficiency in ways that were previously outside the realm of possibility. However, the advent and proliferation of new healthcare AI tools is often occurring outside the scope of existing laws and regulations, creating situations where patients and providers lack the transparency and knowledge of AI tools used in their care. I write to you today to highlight the role that healthcare accrediting organizations can play in enhancing transparency and providing guardrails for the use of AI in clinical care while also ensuring pathways to innovation that allow for continued development of important new healthcare AI tools. As outlined below, URAC believes that existing proven healthcare accrediting organizations with a history of being endorsed and reviewed by HHS can play an instrumental role in ensuring the safe and effective use of AI in healthcare through the development and application of private sector AI accreditation programs that emphasize quality, transparency, and safety.

A. Background on URAC and Accreditation

URAC is the independent leader in promoting healthcare quality through accreditation, measurement, and innovation. URAC is a non-profit organization that uses evidence-based measures and develops standards through inclusive engagement with a wide range of stakeholders committed to improving the quality of healthcare. Our portfolio of accreditation and certification programs spans the healthcare industry, addressing digital health, healthcare management and operations, health plans, pharmacies, and more. URAC is a deemed accreditor recognized by HHS and state agencies throughout the country.

In September 2025, URAC announced the release of the nation's first healthcare-specific AI accreditation aimed at creating a framework for evaluating and addressing the development and use of AI tools in healthcare settings. URAC's Artificial Intelligence in Health Care Accreditation (AIHC) was created following months of engagement with leading national experts on AI matters that included extensive deliberation evaluating current uses of AI in healthcare, assessing the

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development and implementation of healthcare AI tools, and addressing concerns about the use and development of AI from patients and providers. Our engagement with AI experts, developers, and users throughout this process highlighted many of the concerns identified by HHS in the RFI. Namely, the importance of ensuring safe and effective AI that prevents waste, fraud, and abuse, while also ensuring that “AI innovations are not diminished” and that AI tools may continue to evolve with the industry “to meet the needs of a changing healthcare system.”¹

Accreditation is uniquely situated to achieve these goals. Federal and state agencies rely on the value of accreditation to ensure quality and safety across the healthcare system, while also preserving the ability to adapt to industry changes and developments in new technologies and applications.

In the RFI released by HHS, the agency requests public input on challenges and opportunities facing the use of AI in clinical care. URAC’s ongoing collaborative discussions with AI industry representatives and experts indicated heightened concerns in areas such as privacy, transparency, and safety. Patients and caregivers have fundamental questions about the integrity of their health information and personal data, the use of AI tools without their awareness or consent, and the reliability of outputs derived from AI applications due to bias, drift, and hallucinations. Historically, private sector accreditation such as the AIHC program offered by URAC has played a prominent role in ensuring safe and effective health care. HHS and other federal and state agencies currently utilize private sector accreditation as a means of supplementing regulatory provisions with additional quality and safety standards that evolve along with industry developments and new technologies. Seeking care at an accredited organization can provide peace of mind that the organization has developed processes to promote appropriate use of confidential information and support quality patient care when using AI.

B. URAC Artificial Intelligence in Healthcare Accreditation

URAC’s AIHC Accreditation was developed to provide a dynamic tool for payers, purchasers, and regulators to address the gap between the real-world use of AI and existing regulatory structures intended to protect patients and providers. Unlike traditional regulatory approaches, private sector accreditation offerings such as URAC’s AIHC program promote best practices, provide much-needed guardrails, and protect patients, while also allowing for innovation, information sharing, and the development of trustworthy AI systems. Accreditation offers an important layer of oversight through detailed review processes that provide patients and regulators with reliable and adaptable AI guardrails.

In recent months, URAC has worked closely with leading industry experts and AI stakeholders to develop the first accreditation for AI in healthcare, resulting in a program that will help to build trust in the use of AI, reduce risk, and validate safe and fair health care AI. To facilitate development of URAC’s new AIHC Accreditation, we convened a multidisciplinary advisory group to support development of the program and provide much-needed insight on the use and

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¹ Request for Information: Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care, 90 Fed. Reg. 244 (December 23, 2025), p. 60109.

development of new AI tools impacting health care. The 29-member advisory group represented a broad segment of the health care industry, including providers, hospitals, health plans, developers, legal experts, policy groups, and associations. The feedback and insight from this group of AI leaders and experts helped shape URAC's AIHC Accreditation and provided standards that reflect the real-world needs of the full segment of AI users in health care.

Based on feedback from AI leaders, URAC created an AIHC Accreditation based on a modular approach that provides specific standards and processes for both developers and users of AI systems and tools to ensure that standards are relevant and meaningful. URAC's new accreditation is structured to emphasize a common set of standards that apply across the AI spectrum, emphasizing risk management, operations and infrastructure, and performance monitoring and improvement. URAC's modular approach to AIHC Accreditation affords the opportunity to create additional standards applicable to developers, users, or both. This adaptability of the accreditation process and standards makes accreditation well-suited to addressing the broad scope of AI tools currently in the market in addition to those being developed for future use.

C. HHS Steps to Support Private Sector Activities to Promote Innovative and Effective AI Use

URAC is proud of its role as an HHS-deemed accreditor and our work with HHS to ensure that health plans participating in state and federal programs meet the highest standards for patient safety and quality. Private sector activities such as accreditation have historically played a prominent role in healthcare quality by supplementing federal and state statutes and regulations to provide additional standards for quality and transparency relied on by public programs. HHS specifically requests in the RFI that commenters address ways that HHS can best support private sector activities such as accreditation that promote the innovative and effective use of AI in healthcare. We respectfully offer the following suggestions:

- 1. Implementation of AI accreditation requirements in future HHS rulemaking** – HHS has historically incorporated private sector accreditation standards for applicable healthcare entities through the formal rulemaking process. Examples of prior instances of formal rulemaking that incorporate private sector accreditation include requirements for QHP issuers,² independent dispute resolution entities,³ home infusion therapy services,⁴ and Medicare Advantage health plan issuers.⁵ In addition to HHS, states throughout the country utilize private market accreditation to supplement regulation in various areas of healthcare. Accreditation is a widely-used and historically relied-upon supplement to traditional regulation with the ability to adapt and change quickly to address industry developments.
- 2. Encourage voluntary adoption of healthcare AI accreditation among users and developers** – In addition to the adoption of

² 45 C.F.R. § 156.275 (2013)

³ 45 C.F.R. § 149.510 (2024)

⁴ 45 C.F.R. § 488.1030 (2022)

⁵ 45 C.F.R. § 422.157 (2000)

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regulatory requirements that rely on private sector accreditation of AI in healthcare settings, HHS should take steps to encourage voluntary adoption of private sector accreditation among users and developers of healthcare AI. HHS can achieve this goal by incorporating AI accreditation into agency metrics for AI development and deployment, endorsing accreditation in funding and grant opportunities, and prioritizing agency adoption and endorsement of AI tools that are accredited by recognized and qualified private sector accreditors.

3. **Exercise existing communication levers by utilizing the HHS webpage to establish a public-facing website with information on AI accreditation** – HHS has additional options to encourage private sector accreditation of AI technologies outside the formal rulemaking process, such as the development of new online resources for users and developers of AI tools that includes best practices and considerations that highlight the protections offered by accredited AI tools. In the absence of formal regulatory requirements for the accreditation of AI tools and developers, HHS has the ability to use its existing authority to establish online resources that provide patients and providers with information about the role that AI plays in their healthcare, the advantages of accreditation, and the patient and provider protections contained in private sector AI accreditation standards. Historically, HHS has undertaken similar efforts to advance public awareness of the patient and provider protections provided by accredited entities. In 2024, HHS established a public-facing resource highlighting the role of telehealth accreditation and the benefits of receiving care from accredited entities.⁶ This online resource contains both clinical and training information for providers, patient information, and an overview of standards applied by accrediting organizations. Similar resources for AI accreditation can increase patient and provider confidence in AI tools being deployed in clinical settings.
4. **Include URAC AIHC Accreditation within the shared repository of procurement best practices identified in OMB M-25-22** – HHS has the ability to encourage private sector accreditation by defining AI accreditation as a procurement best practice for consideration when the agency drafts and implements new funding and purchasing agreements. The Office of Management and Budget (OMB) endorsed and emphasized the need for cross-functional collaboration across federal agencies to avoid obstacles and risks in the purchase of new AI technologies.⁷ URAC recommends that HHS take steps to endorse private sector accreditation as a procurement best practice and include AI accreditation within the tools and resources that the agency contributes to the OMB shared repository of AI best practices.
5. **Update procurement language to mandate or encourage AIHC Accreditation for potential federal contractors in accordance with the HHS Artificial Intelligence Strategy and M-25-21** – Federal agencies such as HHS are in the unique position to shape

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⁶ Telehealth Accreditation, United States Department of Health and Human Services, Introduction to Telehealth Accreditation (September 2024), available at <https://telehealth.hhs.gov/providers/best-practice-guides/telehealth-accreditation>

⁷ Office of Management and Budget, Exec. Office of the President, Memorandum M-25-22, Driving Efficient Acquisition of Artificial Intelligence in Government (2025)

industry standards outside of the formal rulemaking process by incorporating quality and safety standards withing contracting and procurement requirements. In providing guidance for the use of AI by federal agencies in OMB Memorandum M-25-21 (Accelerating Federal Use of AI through Innovation, Governance, and Public Trust), OMB emphasized removing barriers to innovation while also accelerating responsible AI adoption.⁸ Private sector accreditation can address both of these priorities when incorporated into procurement standards for agency contracting as a way of ensuring that HHS vendors and partners adhere to robust standards for patient safety and data protection.

6. **Incorporate private accreditation standards into efforts to promote adoption of AI tools established in the HHS Artificial Intelligence Strategy** – HHS has previously established as a pillar of its AI strategy the importance of enabling care and modernizing public health delivery for better outcomes.⁹ In doing so, HHS envisions steps such as the provision of federal grants, additional research and discovery efforts, and the role of accountability. Across divisions, HHS has the ability to encourage private sector accreditation by including AI accreditation as a requirement for federal funding opportunities aimed at establishing guidelines to maximize the potential benefits of AI use while minimizing security and privacy risks.
7. **Include private accreditation as a best practice or standard operating procedure under the HHS AI Compliance Plan** – Among the tools available for HHS to encourage private sector approaches to AI such as accreditation, the option exists for HHS to adopt AI accreditation as a best practice or standard operating procedure under the HHS AI Compliance Plan.¹⁰ The Plan notes that HHS envisions the development and release of best practices as a means of fostering public trust and removing barriers to the use of safe and effective AI tools. URAC encourages HHS to define accreditation as a best practice or standard operating procedure for agency efforts to adopt and implement new regulatory structures and procurement standards for AI tools. The endorsement of private sector accreditation as a best practice satisfies HHS goals of promoting both transparent and efficient use of AI.
8. **Provide guidance to state programs on presumed high-impact AI use that encourages accreditation as a standard for review** – Understanding the importance of developing regulatory and sub-regulatory approaches that allow the AI industry to evolve and develop innovative new tools for patient care, HHS has emphasized the importance of “transparent, risk-proportionate controls”, indicating that certain “high-impact” AI applications are ripe for additional engagement due to their significant impact on health outcomes, individual rights, or public trust. URAC encourages HHS to incorporate AI accreditation as a standard for review when considering high-impact AI activities. Examples of steps that HHS could take include a prominent role for

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⁸ Office of Management and Budget, Exec. Office of the President, Memorandum M-25-21, Accelerating Federal Use of AI through Innovation, Governance, and Public Trust (2025)

⁹ United States Department of Health and Human Services, Artificial Intelligence (AI) Strategy, p.14 (2025), available at <https://www.hhs.gov/sites/default/files/hhs-artificial-intelligence-strategy.pdf>

¹⁰ United States Department of Health and Human Services, Compliance Plan for OMB Memorandum M-25-21 (2025), available at <https://www.hhs.gov/sites/default/files/2025-hhs-ai-compliance-plan.pdf>

accreditation as a means of independent review of AI activities as envisioned in the HHS Artificial Intelligence Strategy. I encourage HHS to consider the role of private sector accreditation in providing guidance to state Medicaid programs that include high-impact AI uses.

D. Conclusion

URAC thanks the Department of Health and Human Services for the opportunity to comment on the critical and evolving role of artificial intelligence in healthcare, in particular ways to support private sector activities that promote innovative and effective use of AI. The role of private sector accreditation as a supplement to federal and state laws and regulations is well-founded in healthcare and insurance laws throughout the country. Accreditation is particularly well-situated as an evolving set of requirements and obligations that can adapt to changes in technology and uses in ways that statutes and regulations cannot, making it an ideal tool for HHS to consider as it seeks to address the expanding role of AI in clinical care.

If you wish to discuss this further, I encourage you to reach out to URAC directly. Please feel free to contact me at sgriffin@urac.org at your convenience.

Sincerely,



Shawn Griffin, M.D.
President and CEO of URAC

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